

Adeel Husain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2014 · Criminal Misc. Writ Petition No. 13180 of 2014 · **FIR quash refused; CrPC 41/41-A directed; compounding left to Supply Code.**

HEADNOTE

Petition to quash FIRs under ss. 138-B and 135-E of the Electricity Act, 2003 failed because the FIRs disclosed a cognizable offence. Any arrest for an offence not punishable with more than seven years must follow s. 41(1)(b) read with s. 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Seven petitioners sought quashing of Case Crime Nos. 490, 492, 494, 496, 499, 500 and 505 of 2014 registered at Police Station Mahuli, District Sant Kabir Nagar, under Sections 138-B and 135-E of the Electricity Act, 2003. They had not been arrested and feared police would arrest them contrary to Section 41(1)(b) read with Section 41-A CrPC. Counsel also submitted that the alleged offences carried a maximum sentence not exceeding seven years and were compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::138

FIR quash of reconnection/theft charges; compounding under Supply Code

HOLDING

FIRs under ss. 138-B and 135-E of the Electricity Act, 2003 disclose a cognizable offence and will not be quashed. Arrest, if made for an offence not entailing sentence of more than seven years, must comply with s. 41(1)(b) read with s. 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

FLAG FIR charges styled as ss. 138-B and 135-E of the Electricity Act; not restated as 138(b)/135(1)(e).

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Petition to quash FIRs under ss. 138-B and 135-E of the Electricity Act, 2003 failed because the FIRs disclosed a cognizable offence. Any arrest for an offence not punishable with more than seven years must follow s. 41(1)(b) read with s. 41-A CrPC.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CHARGED OFFENCES ARE IN FACT COMPOUNDABLE UNDER THE ELECTRICITY SUPPLY CODE, 2005

Court said only that if the offence is compoundable the petitioners may seek that remedy under the Code. ¶ 1